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The Yale Political Quarterly

An Undergraduate Publication

VOLUME 20, NUMBER 1, OCTOBER 1998

FOUNDED 1979

Josh Chafetz

The Supreme Court on Sexual Harassment

Ranjan Goswami

Towards a New US-India Strategic Alliance

Chris Mooney

In Defense of the Separation of Church and State

Nicole Hinnebusch

Commentary: Perspective on Global Leadership

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The High Court's Convoluted Sexual Harassment Jurisprudence

Josh Chafetz

Seemingly, all the Supreme Court wanted to talk about last term was sex. For the first time since the arrival of Justice Thomas, the Supreme Court significantly revised the sexual harassment landscape last term, deciding four separate cases dealing with how much liability employers have for the harassing actions of the supervisors in their organizations. Unfortunately, the new landscape is a disjointed one, and, worse, actually provides less protection for the most vulnerable harassed parties.

The first case to be decided was a simple one. In *Oncale v. Sundowner*,[1] the question presented was simply whether workplace harassment can be considered sex discrimination when the harasser and the harassed employee are of the same sex. Joseph Oncale, working in the all-male environment of an off-shore oil platform, was repeatedly subjected to harassing behavior. His complaints to higher management produced no results, and Oncale eventually quit and filed suit against his former employer, Sundowner Offshore Services, Inc. Justice Scalia, writing for a unanimous Court, held that same-sex harassment was subject to the same standards as any opposite-sex sexual harassment claim.

Title VII of the Civil Rights Act of 1964 states that "it shall be unlawful employment practice for an employer . . . to discriminate against any individual with respect to his compensation, terms, conditions, or privileges of employment, because of such individual's race, color, sex, or national origin."[2] Justice Scalia noted simply that "Title VII prohibits 'discriminat[ion] . . . because of . . . sex' in the 'terms' or 'conditions' of employment. Our holding that this includes sexual harassment must extend to sexual harassment of any kind that meets the statutory requirements."[3]

Scalia was quick to point out, however, that an actionable claim against the employer in any sexual harassment case requires a demonstration of discrimination, not merely offensive conduct. In order for harassment to be discriminatory, it must be either *quid pro quo* (e.g., an employer's trading of a promotion for sexual favors), or hostile environment ("behavior so objectively offensive as to alter the 'conditions' of the victim's employment"[4]). Title VII, as Scalia put it, is not "a general civility code."[5]

In short, nothing distinguishes same-sex harassment from opposite-sex harassment. Both must meet the same standards of discrimination under Title VII. Justice Thomas, apparently feeling that the half of Justice Scalia's opinion that was devoted to emphasizing that

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Title VII did not represent a general civility code was insufficient, wrote a one-sentence concurring opinion: "I concur because the Court stresses that in every sexual harassment case, the plaintiff must plead and ultimately prove Title VII's statutory requirement that there be discrimination 'because of . . . sex.'"[6] For the Court to explain what that meant would ultimately require waiting four months, until the very last day of the term.

Gebser and *Burlington*

On that day, the Court handed down two decisions that settled the issue of when an employer is liable for the harassing of an employee by a supervisor. The decisions in these cases, *Burlington v. Ellerth*[7] and *Faragher v. Boca Raton*,[8] were so similar that one noted Court observer wrote that "the Court rearranged the sexual harassment landscape by working the cut and paste buttons on the word processor."[9]

Burlington dealt with the case of a woman whose supervisor told her that she would not receive a promotion unless she "loosened up" towards him. Although she did not do so, she nonetheless received the promotion. Thus, to begin with, lower courts were confused as to whether this constituted a case of *quid pro quo* or hostile environment harassment. In short, it seemed to be a case of *quid pro quo* harassment *sans* the *quid* and the *quo*! Justice Kennedy, who wrote the decision for the 7-2 majority, began by stating that the terms "hostile environment" and "*quid pro quo*" are never mentioned in Title VII and should be treated as pliable judicial tools, not strict necessary categorizations.

Having said that, Justice Kennedy went on to point out that *quid pro quo* harassment always carries with it vicarious liability – that is, the employer is always responsible for the actions of the supervisor – whereas hostile environment harassment does not necessarily entail vicarious liability. He then noted that "[b]ecause Ellerth's claim involves only unfulfilled threats, it should be categorized as a hostile work environment claim which requires a showing of severe or pervasive conflict."[10] The Court accepted the District Court's finding that the conduct was severe and/or pervasive, and thus moved on to the more difficult question of whether the employer assumed vicarious liability in the case.

Noting that Title VII specifically includes "agents" under the definition of employers, Justice Kennedy turned to an analysis of the common law doctrine of agency. Under agency law, an employer is liable when, among other things, "the master was negligent or reckless" or "the servant . . . was aided, in accomplishing the tort by the existence of the agency relation."[11] Under the first of these, says Kennedy, "[a]n employer is negligent with respect to sexual harassment if it knew or should have known about the conduct and failed to stop it."[12] Under the second criterion, an employer is liable if the discriminatory act "results in a tangible employment decision"[13] like hiring, firing, failing to promote, etc.

In putting all of these considerations together, then, the Court developed one set of criteria to determine an employer's vicarious liability in Title VII sexual harassment cases: the employer is always liable for *quid pro quo* harassment. Furthermore, the employer is assumed to be liable for hostile environment harassment, unless the employer can demonstrate both that the employer took reasonable care to prevent and correct any sexually harassing behavior and that the harassed employee unreasonably failed to take advantage of the employer's preventive or correctional tools.[14]

Although the facts of the *Faragher* case were slightly different, Justice Souter's decision there follows almost exactly the same logic as Justice Kennedy's decision in *Burlington*. The quote above was reprinted word-for-word in *Faragher*.[15] Many Court observers agreed that these two rulings "clarified the law of sexual harassment in the workplace"[16] and "establish[ed] the same clear test for employer liability in [all] cases."[17]

Justice Scalia, writing for a unanimous Court, held that same-sex harassment was subject to the same standards as any opposite-sex sexual harassment claim.

Justices Scalia and Thomas were not so sure. Justice Thomas wrote dissenting opinions in both cases, and Justice Scalia joined him in both. Justice Thomas wrote that sexual harassment should be treated the same as racial harassment, both of which fall under Title VII. That is, as in racial harassment cases, an employer should be liable for the sexual harassment of a supervisor "if, and only if, the plaintiff proves that the employer was negligent in permitting the

supervisor's conduct to occur."[18] In contrast to the Court's imposition of an affirmative defense for employers, Justice Thomas would leave the burden of proof on the plaintiffs, who would "of course bear the burden of proving the [employer's] negligence."[19] Justice Thomas goes on to paint a grim picture of a society in which employers are always assumed liable for the harassing of their employees by supervisors: "Sexual harassment is simply not something that employers can wholly prevent without taking extraordinary measures – constant video and audio surveillance, for example – that would revolutionize the workplace in a manner incompatible with a free society."[20] As to the supposed clarity of the Court's guidelines, Justice Thomas calls the statement of the affirmative defense a series of "Delphic pronouncements" which leave the "dirty work [of interpretation] to the lower courts."[21]

Justice Thomas wrote that sexual harassment should be treated the same as racial harassment, both of which fall under Title VII.

Yet, for all of Justices Scalia and Thomas's complaints, the opinions of the Court in the three cases discussed so far are remarkably consistent. After all, *Faragher* and *Burlington* set up exactly the same standards, and *Oncale* simply applies this standard to same-sex harassment, as well as opposite-sex. Where is the aforementioned disjointedness? That requires an examination of a case handed down four days before *Faragher* and *Burlington*, entitled *Gebser v. Lago Vista*.[22]

Gebser

Unlike the other three cases, *Gebser* was not examined under Title VII of the Civil Rights Act of 1964. Instead, because the case involved the harassment of a student by a public school teacher, the school district's liability was analyzed under Title IX of the Education Amendments of 1972 (more familiar as the law mandating parity in funding between male and female college athletics). The pertinent part of Title IX provides that "no person . . . shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance."[23] In a previous case,[24] the Court held that Title IX protection may be secured through a private right of action – that is, individuals may sue in order to obtain enforcement of Title IX. Both Gebser and the United States, which filed an *amicus curiae* brief, asked the Court to apply the same standards to Title IX cases as to Title VII cases: agency principles.

Justice O'Connor, writing for a 5-4 majority, declined to apply agency principles, noting that such principles were applicable to Title VII cases because Title VII specifically includes the term "agent" under the definition of employer. "Title IX contains no comparable reference to an educational institution's 'agents,' and so does not expressly call for application of agency principles,"[25] Justice O'Connor found. She went on to write that, because the private right of action under Title IX is judicially implied, rather than explicitly stated in the statute, the Court has "a measure of latitude to shape a sensible remedial scheme that best comports with the statute."[26] She then held that "it would 'frustrate the purposes' of Title IX to permit a damages recovery against a school district for a teacher's sexual harassment of a student . . . without actual notice to a school district official" because, "[a]s a general matter, it does not appear that Congress contemplated unlimited recovery in damages against a funding recipient where the recipient is unaware of discrimination in its programs."[27]

Justice O'Connor's final word on when a school district can be held liable for a teacher's harassment of a student, then, is that an educa-

tional institution is not liable under Title IX unless an official empowered with the authority to rectify any discrimination "has actual knowledge of discrimination in the recipient's programs and fails adequately to respond. . . . [M]oreover, that the response must amount to deliberate indifference to discrimination,"[28] a much stricter requirement than that which the Court imposed in *Burlington* and *Faragher*.

In a dissenting opinion, Justice Stevens, joined by Justices Souter, Ginsburg, and Breyer, wrote that the Court's opinion "thwarts the purpose of Title IX" by making the threshold for recovery of damages too high.[29] Justice Stevens argued that agency law should be applied to Title IX,[30] and, thus, Title IX claims should be evaluated in the same manner as Title VII claims.

Clearly, there are two very different standards of vicarious liability at work here. Nowhere is this more evident than in Justice O'Connor's statement in *Gebser* that, "[u]nder a lower standard [i.e., a standard like the one the Court was to apply four days later in *Burlington* and *Faragher*], there would be a risk that the recipient would be liable in damages not for its own official decision but instead for its employees' independent actions."[31] In contrast, the opinions in *Burlington* and *Faragher* made a point of noting that employers could be – indeed, are presumed to be – held liable for their employees' independent actions.

Ironically, the effect of the Court's combined decisions is to afford *less* protection to *weaker* parties. That is, students who are harassed by their teachers have to meet a much higher burden to recover damages from the school district than employees who are harassed by their supervisors do to collect damages from their employer. The ACLU and other groups, "noting that students now have less protection from sexual harassment than adult workers,"[32] have asked Congress to amend Title IX.

It seems apparent that there is no good reason for this double standard. There is no objective reason why an employer should have a different standard of liability for a supervisor's harassment of an inferior when the employer is a school district, the supervisor a teacher, and the inferior a student than when the employer is an ordinary business, the supervisor a manager, and the inferior an employee. The question then becomes this: If the Court is to create a *unified* application of vicarious liability for employers in sexual harassment cases, what should that application be?

A Unified Application

I propose a unified application based upon a middle ground between the *Burlington/Faragher* standard and the *Gebser* standard. This middle ground was actually well articulated in Justice Thomas's dissent in *Burlington*. The stand that the Court takes in *Burlington* and *Faragher* seems antithetical to the rights of the businesses involved. By assuming liability, and then giving the employer the right to raise an affirmative defense, the Court essentially begins by assuming guilt. Although such a presumption is not strictly prohibited in civil proceedings, it should be strongly frowned upon. The harassed employee should have to prove that the business was responsible in order to be eligible for a damage award. It seems fundamentally unjust to tell an employer that it is liable unless it can conclusively demonstrate its innocence.

If the Court is to create a unified application of vicarious liability for employers in sexual harassment cases, what should that application be?

On the other hand, the Court's decision in *Gebser* encourages ostrich-like behavior on the part of school districts. By holding the district liable only when a sufficiently high-ranking district official "has

actual knowledge of discrimination,"[33] the Court inadvertently encourages school districts to do everything possible to *avoid* discovering instances of sexual harassment. This incentive is quite clearly perverse.

The most reasonable alternative appears to be that presented by Justice Thomas in his *Burlington* dissent. By treating sexual harassment in the same manner as racial harassment, the employer is liable if it "either knew, *or in the exercise of reasonable care should have known*, about the hostile work environment and failed to take remedial action."[34] Such a standard necessarily entails a demonstration by the plaintiff of what the employer did know or should have known. It therefore shifts the burden of proof away from the employer and to the harassed employee – that is, away from the defendant and to the plaintiff. In so doing, it avoids the pitfalls of the *Burlington/Faragher* standard. Moreover, this model assigns liability to the employer if it *should* have known about the harassment. It thus eliminates any incentive for the employer to go out of its way to avoid discovering instances of sexual harassment. Hence, it also avoids the pitfalls of the *Gebser* standard. In short, Justice Thomas's model is the most equitable and practical, and it has demonstrated its utility in the field of employer vicarious liability in racial harassment cases. It thus stands as the best alternative for assigning employer vicarious liability in sexual harassment cases as well.

The Court will soon have an opportunity to move one step closer to a new, unified standard. On September 29, 1998, the Court agreed to hear the case of *Davis v. Board*,[35] which raises the question of whether or not a school district can be held liable for one student's harassment of another. If the Court is to move towards a unified standard based upon Justice Thomas's suggestion, then it should hear the case within the following framework: Did school officials know about the harassment? If so, did they take any action? If not, should they have known (i.e., was their ignorance caused by a lack of "reasonable care")? It is within the framework of these questions that the Court can build a fair and unified standard of employer vicarious liability for sexual harassment claims.

[1] *Joseph Oncale, Petitioner v. Sundowner Offshore Services, Incorporated, et al.*, 66 U.S.L.W. 4172 (1998). Online. Internet. Available <http://supct.law.cornell.edu/supct/html/96-568.ZO.html>.
[2] 42 U.S.C. § 2000e – 2(a)(1), as cited in *Oncale, supra*.
[3] *Oncale, supra*.
[4] Id.
[5] Id.
[6] *Oncale, supra* (Thomas, J., concurring) Online. Internet. Available <http://supct.law.cornell.edu/supct/html/96-568.ZC.html>.
[7] *Burlington Industries, Inc., Petitioner v. Kimberly B. Ellerth*, 66 U.S.L.W. 4634 (1998). Online. Internet. Available <http://supct.law.cornell.edu/supct/html/97-569.ZO.html>.
[8] *Beth Ann Faragher, Petitioner v. City of Boca Raton*, 66 U.S.L.W. 4643 (1998). Online. Internet. Available <http://supct.law.cornell.edu/supct/html/97-282.ZO.html>.
[9] Tony Mauro, "Give Us Some Old-Fashioned Judging," *Legal Times*, 13 July 1998, S22.
[10] *Burlington, supra*.
[11] Reinstatement (Second) of Agency (1957), Section 219(2), quoted in *Burlington, supra*.
[12] *Burlington, supra*.
[13] Id.
[14] Id.
[15] *Faragher, supra*.
[16] Linda Greenhouse, "Aiming for Clarity, Supreme Court Achieved it to a High Degree," *New York Times*, 30 June 1998, Online. Internet. Available <http://www.nytimes.com/>.
[17] Mauro, *supra*.
[18] *Burlington, supra* (Thomas, J., dissenting) Online. Internet. Available <http://supct.law.cornell.edu/supct/html/97-569.ZD.html>.
[19] *Faragher, supra* (Thomas, J., dissenting) Online. Internet. Available <http://supct.law.cornell.edu/supct/html/97-282.ZD.html>.
[20] *Burlington* (Thomas, J., dissenting), *supra*.
[21] *Burlington* (Thomas, J., dissenting), *supra*.
[22] *Alida Star Gebser and Alida Jean McCullough, Petitioners v. Lago Vista Independent School District*, 66 U.S.L.W. 4501 (1998), Online. Internet. Available <http://supct.law.cornell.edu/supct/html/96-1866.ZO.html>.
[23] 20 U.S.C. § 1681(a), as cited in *Gebser, supra*.
[24] *See Cannon v. University of Chicago*, 441 U.S. 677 (1979).
[25] *Gebser, supra*.
[26] Id.
[27] Id.
[28] Id.
[29] *Gebser, supra* (Stevens, J., dissenting) Online. Internet. Available <http://supct.law.cornell.edu/supct/html/96-1866.ZD.html>.
[30] *See Gebser* (Stevens, J., dissenting), *supra* at n. 9.
[31] *Gebser, supra*.
[32] Marcia Coyle, "Supreme Court Review: OK, Let's All Go to the Right," *National Law Journal*, 10 August 1998, B8.
[33] *Gebser, supra*. (Emphasis added).
[34] *Burlington* (Thomas, J., dissenting), *supra*. (Emphasis added).
[35] *Davis v. Monroe County Board of Education*, No. 97-843. *See* Linda Greenhouse, "High Court Will Add Sex Harassment Rulings, Taking Up Case of Offense by Student," 30 September 1998, A13.

India – US Relations: A conflict-ridden past, a cooperative economic future

Ranjan Goswami

India has long been a nation of immense potential. Its status as the world's second largest population market, democratic parliamentary system of government, and Anglo-judicial system have all been in place since the country's inception in 1947.[1] However, despite these seemingly positive aspects, the United States and India have not had close relations. Questions that arise from Indo-US relations include the following: Why is it that the world's largest democracy (India) and the world's pioneering and most vocal democracy (the United States) have not enjoyed the strong ties that one would expect of two such ideologically similar nations? Will the relations between these countries improve or stay at the same level?

In answering the first question we must examine India's foreign policy of Nonalignment and the nation's ties with the former USSR, Pakistan, United States, and China, as well as these countries' ties with each other. The importance of territorial or geographic strategies in foreign policy during Cold War times becomes apparent. To answer the second question we need to compare India and China, US relations with China, and the recent nuclear testing on the sub-continent. Analysis of these will show how foreign policy today is shaped by trade and peace rather than motives of geographic influence. The aim of this essay is to present the historical background to Indo-US relations and to assert that the US ought to change its priorities concerning India and integrate it into a major part of its foreign and economic policies.

India emerged from colonial rule in 1947. The leadership of India after the partition (the creation of Pakistan for Muslims in India under the British) saw that India needed to commit its resources into developing the young, poor, and large multi-ethnic population nation. With this as its primary goal, India chose not to enter the escalating Cold War by starting the Nonalignment movement, a strategy intended to safeguard India's independence by advocating that each nation choose its own system of governance, and intended to back new nations that were emerging from colonialism. Nonalignment – promulgated by Jawaharlal Nehru, India's first Prime Minister – meant that India would not be able to rely on protection from either of the two superpowers, but would need to build up its own defense system to be ready for any intrusion. [2] However, although Nonaligned nations were not supposed to side with either the US or USSR, they began to do so anyway. [3] The USSR and the Eastern Bloc supported the Nonalignment rhetoric that no nation should impose its system of government onto another (nation). The Nonaligned nations (some 120 countries) made many joint stands against US and Western European interference in the world. Calls for a unified Vietnam, the Palestinian liberation movement, the condemnation of the US sponsored and backed dictatorial Pinochet government in Chile, and for the return of the US naval base at Diego Garcia to Mauritous were examples taken by Nonaligned states against the US and its European allies. [4] India, under Nehru's daughter Indira Gandhi, also took vocal positions against American economic support of South Africa (the US was South Africa's largest trading partner at the height of Apartheid), and against interference in Afghanistan. This, however, was articulated without direct condemnation of the USSR. [5]

India's leadership role in the movement and its stance on independence for all nations caused a rift between itself and the U.S.

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John Dulles, US Secretary of State, labeled Nonalignment as "immoral" as it did not take a stance between what the US considered right and wrong. [6] India's argument that Nonalignment asserted "peaceful coexistence" was not enough to persuade Washington to the ideology or to India. [7]

The USSR and India forged close ties due in part to the Soviet Union's affirmation of Nonalignment objectives and in part to India's many socialist programs including the nationalization of several large industries. Furthermore, Nehru's "Five Principles" for good relations: sovereignty, non-interference, independence, equality, and non-aggression, were also supported by the USSR. [8] American suspicions of India were further heightened by Krushchev's 1955 visit to New Delhi and the 1971 signing of the Soviet-India Friendship Treaty, which pledged mutual support against antagonistic powers (US and China). [9] The US retaliated by renewing relations with China, which first they bestowed China a seat in the Security Council rejecting Taiwan, and secondly, in the 1972 Sino-American Summit, the Shanghai Communiqué, which stated their joint rejection of Soviet hegemony in Asia. [10] India identified this shift in American policy and realized that the US had now allied with India's two main threats: China and Pakistan. The obvious irony in Indian and US policy was that both democracies had befriended proponents of communism.

India's argument that Nonalignment asserted "peaceful coexistence" was not enough to persuade Washington to the ideology or to India.

Pakistan and India have a mercurial relationship. The two nations have fought three wars over border disputes, all of which have been won by India. However, Pakistan allied with the US during the Cold War. It offered the US a foothold in the West Asian region, cooperation in an Islamic country, containment of the USSR from a southern vantage point, bases for American missiles to be targeted at points in Russia, and a very soft spoken Nonalignment stance. India was not willing to offer America any of these strategic geopolitical advantages, which were rooted in territorial influence. Pakistan further allied with America using geographic strategies by joining the South East Asian Treaty Organization (SEATO) and the Central Treaty Organization (CENTO). SEATO was a grouping of nations including the Philippines and Thailand where the purpose was to stop the spread of communism through joint intelligence. CENTO was a north Middle East grouping of nations including Iraq also united against the influence of Communism. The US did not join these organizations but did initiate and coordinate joint military agreements with them. [11] India, with its policy of Nonalignment, was naturally opposed to these organizations, as well as to NATO. Finally, the war for Bangladesh in 1971 further stressed the rift between India and the United States when the US sent the 7th Fleet into the Bay of Bengal to force India to an early ceasefire. [12] The Cold War brought about alliances that were quite simply geographical so as to counter military spheres of influence. National foreign policy agendas separated India and the United States as each nation pursued different goals: India, to protect its independence by respecting national independence via non-interference, and the United States, to protect and spread democracy. As we move beyond 1998, however, we are seeing the territorial reasoning behind alliances being replaced by an economic one.

India and China are essentially competitors for influence in Asia, and for the land along their disputed borders. Relations have never been good, and they deteriorated further after the 1962 border war in which China launched an attack on India's Himilayan front and gained some 90,000 square kilometers of land. [13] China's seat on the UN Security Council and its position as the fourth

largest nuclear power does not ease India's fears and suspicions of its northeast neighbor. [14] India's strategy with China since the 1962 war has been to ignore the border issue and to show support for Vietnam, China's long time South East Asian foe. In return, China has engaged in aid donations to Nepal and Sri Lanka as well as providing nuclear technology to Pakistan. [15] Both countries also compete for aid, export markets, and sources of capital. [16] Since China and India are mutually densely populated suppliers and both are incapable of investing as substantially as the west, China and India will not be forging any alliances soon – they will remain competitors for the long term. Because of this adversarial relationship and the end of the Cold War, the US now has an opportunity to take advantage of new possibilities with India. China's unique position as the largest emerging market has made it the object of attention for many developed nations. While the US trades more than US$57.3 billion worth of goods, Europe trades some US$20 billion. [17] This allows China the power to force the US and Europe to compete with each other for Chinese contracts. An example of this is the commercial airplane orders between American Boeing and European Airbus. In order to counter this Chinese power, the US and the European Union (EU) should seek another comparable market.

The US current upper-hand in Sino-US relations consists of its approval of China's World Trade Organization (WTO) entry and Most Favored Nation (MFN) status. These leverage opportunities will most likely be short run as China's entry into the WTO is imminent and because China is the US's third largest trading partner. [18] In the political sphere, the US and the EU provide a balance of power in the west, in Asia, China is currently the only power wielding dominant political, military, and economic influence. While the US has allied with Japan in attempt to counter China, India is the only nation that can provide as large a market, sphere of influence, and military capability comparable to China if given the appropriate attention. With China set to be the largest economy in the world by the middle of the next century, with a GDP of some US$10 trillion, the major world trading blocs are going to need a counterweight in Asia soon to prevent Chinese hegemonic influence (Tibet and Xinjiang being examples) and ensure a balance of power on the continent. [19] The Association of South East Asian Nations (ASEAN), while a sizable bloc, is not as politically cohesive, militarily capable, or economically strong as China.

On the nuclear front, India undertook a decisive measure in foreign policy with its May testing of five nuclear devices. Not only did Prime Minister Atal Bihari Vajpayee secure power for his coalition government by arousing national pride, through the tests, which yielded approval ratings of around 87%, he also maneuvered Pakistan into detonating devices of their own. [20] In doing so, Pakistan has had to undergo tremendous economic pressure from sanctions enacted by the US and other nations. While India is burdened with the same sanctions, its self-sustaining agricultural and industrial economy is coping with the same sanctions far better than Pakistan's.

Because of this adversarial relationship and the end of the Cold War, the US now has an opportunity to take advantage of new possibilities with India.

One aspect of the tests is striking: the US did not detect India's tests until after they occurred, whereas, in 1994, when Indian Prime Minister Narasimha Rao ordered nuclear testing at the Pokhran test-site, US detections of movement at the test site were leaked to the press, forcing India to cancel the tests. Could this be the US's tacit sign to New Delhi that the US desires rapprochement with India and that a nuclear ca-

pable India will be condoned for a variety of reasons – one being to counter China? Could it be that India, after having forced Pakistan into detonating its own devices, has given the US a reason to distance itself from the Muslim nation? While we cannot confirm such speculation, we can look at the US's relationship with Pakistan to date and why it is not in the US's interests to maintain close relations with Pakistan, especially if that means distant relations with India. First, the demise of the Cold War has ended any need for a territorial alliance with Pakistan. The US need not worry about India's turning away from democracy, as one could argue that India is one of the most democratic nations in the world with its government changing every 8 – 15 months! Secondly, current US good will towards Pakistan lies in Pakistani help in repelling the Soviet invasion of Afghanistan. [21] However, Pakistan's involvement with terrorism in Kashmir and with Sikh separatists has long been suspected. In 1992 the US threatened to place Pakistan on the list of states supporting terrorism. Pakistan reacted by channeling trade via private organizations, something that President Clinton acknowledged at the Indo–US Summit in 1994. [22] Pakistan's Islamic fundamentalist groups are anti-American, something that is likely to spread to the general population with current sanctions. This makes cooperation with Pakistan harder for the US. Thirdly, Pakistan's backing of the Islamic fundamentalist Teleban regime in Afghanistan is not in American interests, nor is such an action in line the with American ideals of freedom and democracy. Fourthly, Pakistan seems to be in the process of shifting to a more Islamic fundamentalist state. On October 9th the National Assembly voted to amend the constitution by granting the federal government power to enact and enforce laws based on government interpretation of the Koran, Islam's holy book. [23] This amendment allows for arbitrary government decisions that lesson Pakistan's reliability as an ally. Fifthly, Pakistan has been soliciting nuclear technology from China and denying doing so.

12

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These five main reasons provide the US with further incentive to enhance ties with India on top of the main incentive – economics. The US reactions to the testing on the sub-continent through equal sanctions for both India and Pakistan testify to an apparent foreign policy shift from Pakistan to India – the sanctions do not hurt India as much as they do Pakistan. Prime Minister Vajpayee's UN Speech in September 1998 stated that India is committed to signing the Comprehensive Nuclear-Test-Ban Treaty (CTBT). [24] By doing so, India managed to show to the world its very real nuclear capability and also placated the world, and the US in particular, with its willingness to sign the treaty within a year. Pakistan's policy, which has always been to sign the CTBT only if India does, was reiterated with Nawaz Sharif's speech to the UN. He too asserted Pakistan's intention to sign the CTBT when India decides to do so. [25] It should also be noted that Europe and Russia have acted very prudently in their punishment of India's testing of nuclear weapons. Neither the UK, France, nor Russia imposed sanctions, perhaps realizing that caution will allow for future trading alliances/benefits.

For India to grab the West's attention (as China has done), it will need to promote greater internal political stability and provide incentives for foreign investment; it will need to curtail its anti-Western and nationalist rhetoric; and, it will need to sign the CTBT. The EU and the US want India in the future to maintain a balance of power in Asia and to protect themselves

(Continued on page 22)

Repairing Jefferson's Wall: In Defense of the Constitutional Rights of Unbelievers

Chris Mooney

Last May, the Library of Congress opened an exhibition entitled "Religion and the Founding of the American Republic." Last June, the Christian Coalition trumpeted to the national media: "Library of Congress Skewers 'Wall of Separation' Myth."[1]

The missing piece of the puzzle here is a "press primer" essay attendant to the exhibit by Library of Congress Chief of Manuscripts Dr. James Hutson, titled "The Wall of Separation Between Church and State: What Jefferson Originally Wrote and What it Means." The essay is neither footnoted nor peer-reviewed. After considerable sleuthing over words Jefferson scratched out in his famous 1802 letter to the Danbury Baptists, the deconstructionist Hutson reaches the following conclusion: Jefferson did not really mean that the First Amendment should erect a "wall of separation between church and state"—or if he did, he meant these words as a "political manifesto" rather than a "tool of constitutional interpretation."[2]

While conservative Christians salivate over this new interpretation, Jefferson scholars are incensed. In an essay entitled "The Real Jefferson on Religion," Robert S. Alley, Professor Emeritus of Humanities at the University of Richmond, accuses both Hutson and the Library of attempting to "'fictionalize' history by distorting documents and utilizing sloppy reasoning" and "invent[ing] a Baptized Jefferson."[3] Isaac Kramnick, professor of government at Cornell University and an expert on the founding fathers, has also spoken out in defense of the historical view of Jefferson the uncompromising secularist, particularly drawing attention to Jefferson's pride at having kept religion entirely out of the University of Virginia.[4]

Certainly interpreting Jefferson's original intentions must be left to historians and intellectuals, and the arguments advanced by Alley and Kramnick severely weaken Hutson's already tendentious case. But given our current cultural war over the role of religion in public and political life, it seems well worth considering whether church/state relations in the United States today do indeed match Jefferson's "wall of separation" model—and if not, to what extent his original vision has been attained. Has Congress really made no law respecting an establishment of religion? Has the Supreme Court always ruled on the side of a complete division of church and state as Jefferson envisioned it? Lastly, does the average American support strong secularism as the best assurance of civil and religious liberties for everyone, as Enlightenment thinkers from Locke to Madison did?

The answer to each of these questions must be a resounding negative, as the following litmus test demonstrates. At present in this country, those who do not believe in God face numerous forms of discrimination, both *de facto* and *de jure*. This could not be the case in a thoroughly secular nation, which maintained Jefferson's wall of separation. In such a nation, neither one's religion *nor one's lack of religion* would make any difference in civic, legal, or political life.

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The United States is *not*—or at least has not been—a secular polity. This consideration serves as an appropriate segue into the body of this essay, which details the various forms of discrimination faced by "unbelievers"[5] in the U.S. today. The description will take two forms: first, a comprehensive assertion of the rights unbelievers *should have* but presently do not, drawing upon a recent declaration of unbelievers' rights by a prominent Freethought organization; and second, an exploration of several pertinent examples of American discrimination against unbelievers. Finally, in conclusion this essay reaffirms and defends the separation of church and state as construed by Madison and Jefferson, and attributes our backsliding from strong secularism to a tyranny of the majority—one of James Madison's greatest fears.

The Rights of Unbelievers

A slew of American laws and practices explicitly discriminate against the substantial minority of the U.S. citizens who do not believe in God.[6] In an attempt to raise awareness and open discourse on this taboo topic, student activists of the Campus Freethought Alliance (CFA) have recently released a comprehensive "Bill of Rights for Unbelievers."[7]

*The United States is **not**--or at least has not been--a secular polity.*

Really this document simply magnifies and explicates the First Amendment. It demands that Jefferson's "wall of separation" remain towering and intact, and accordingly that there be both freedom of and also freedom *from* religion in the United States. Such a secularist interpretation of the Bill of Rights finds strong support not only in historical analyses of the lives and thought of the founding fathers, but in an examination of the Constitution itself. The document upon which our government is based never mentions "God," a "Supreme Being," or a "Creator,"[8] and only mentions "religion" in the context of the First Amendment, which stresses religious freedom.[9]

However, over the course of two hundred years the framers' vision of a secular state has been lost, and the Constitutional rights of unbelievers regularly violated. The CFA "Bill of Rights for Unbelievers" begins by asserting that unbelievers must be granted in all cases the freedom of speech, including the freedom to think about, debate, and criticize any and all ideas. Interpreted in its truest sense, the First Amendment amounts to a license to bear intellectual arms, based on the sticks-and-stones principle that attacking *ideas* can't hurt *people*. Yet this right remains inhibited so long as blasphemy laws remain on the books, as they do in many states, including Massachusetts.

In essence, the CFA Bill of Rights is consistent with all notions of political and personal freedom, equality of opportunity, and non-discrimination. Thus, it next asserts that unbelievers must no longer face discrimination or persecution in the workplace, business transactions, or in public accommodations. Furthermore, unbelievers must not suffer discrimination either at job interviews, or from their superiors in the workplace itself.

Discrimination also pervades the public and political sphere. Currently, the state constitution of Mississippi proclaims that "No person who denies the existence of a Supreme Being shall hold any office in this state." The constitutions of Tennessee, Texas, Maryland, North Carolina, and Arkansas contain similar discriminatory clauses, while South Carolina's constitution bars unbelievers from state office three separate times, and once explicitly from the office of governor. The "Bill of Rights for Unbelievers" demands that these insulting, bigoted statutes be removed immediately from all public documents and business.

The Bill also reminds us that there can

be no reason why the non-religious should be excluded from the privilege of freedom of conscience, one of our most highly valued and carefully guarded rights. Unbelievers must be free to exercise freedom of conscience in any situation where the religious may also do so. If a Quaker can object to making war posters based on her worldview, then an atheist should be allowed to do so as well. Additionally, unbelievers must be free to conscientiously object to serving in the armed forces. It is sadly ironic that, despite all the blood that has been shed in the name of religion throughout the centuries, at present only the religious may object on grounds of conscience to U.S. military service.

Unbelievers also currently face discrimination and penalization from a host of social conventions, norms, practices, and laws established by the majority. Daily school rituals such as the Pledge of Allegiance count as one such example; possibly more shocking, however, is the fact that unbelievers cannot empower members of their own communities to perform legal marriages. Non-religious couples electing to have humanist weddings must be legally married separately by a justice of the peace, or else have no choice but to go to a church.

The "Bill of Rights for Unbelievers" also notes that unbelievers must be protected in their right to raise children in a secular environment, and in abortion or custody proceedings. Religion (or the lack thereof) cannot be deemed indicative of the quality of one's character or parental skills.

Economic freedom, another critical component of individual liberty, is currently violated by widespread blue laws that inhibit business on religious days of prayer and rest. Such laws must be repealed. There exists no universal religious consensus capable of preventing a merchant from opening shop whenever he or she chooses in order to perform legal business transactions.

Finally, the institution of the chaplaincy must be modified so as to accommodate not only different religions, but also those without any religion at all. Counseling addressed explicitly to a secular worldview must be provided for unbelievers in the military, hospitals, universities, rehabilitation centers, and prisons.

Unbelievers also currently face discrimination and penalization from a host of social conventions, norms, practices, and laws established by the majority.

Case Studies:

As the previous section demonstrates, in America today those who do not believe in god face both obvious and subtle forms of discrimination, often touching upon critical aspects of their lives. Yet in the eyes of many, unbelievers' rights violations remain a non-issue. Nowadays in this country, unbelievers are the only minority group a Congressman can slander without having to worry about losing any ground in the polls; indeed, Congressman James A. Traficant, Jr. (D-OH), did just this last August, in a minute speech on the floor of the House of Representatives. The text of his speech is as follows:

> Mr. Speaker, a new report says only 7 percent of scientists believe in God. That is right. And the reason they gave was that the scientists are 'super smart.' Unbelievable. Most of these absent-minded professors cannot find the toilet.
>
> Mr. Speaker, I have one question to for these wise guys to constipate over: how can some thing come from no thing?
>
> And while they digest that, Mr. Speaker, let us tell it like it is. Put these super-cerebral master debaters in some foxhole with bombs bursting all around them, and I guarantee they will not be praying to Frankenstein.
>
> Beam me up here. My colleagues, all the education in the world is

> worthless without God and a little bit of common sense. And I yield back whatever we have left.[10]

Even ignoring Traficant's toilet humor, these remarks constitute a direct attack, by a *very* high-ranking public official, on a minority: in this case the roughly 5 percent of Americans who do not believe in God. To help bring out the damaging and inappropriate nature of Traficant's remarks, imagine that they were addressed to another minority. Suppose that instead of saying: "all the education in the world is worthless without God," Congressman Traficant had instead said, "all the education in the world is worthless without...*white skin*." Not so many years have passed since plenty of Americans actually did often say, and think that very thing.

To be sure, Congressman Traficant is free to articulate his prejudices wherever and whenever he wants, even on the floor of the House of Representatives. Yet surely he would never consider publicly and in the service of government making such remarks about Jews, Muslims, or other religious minorities. If he did so, there would be an uproar. The fact that unbelievers can be attacked with political impunity shows how little the average American politician (not to mention the average American) cares about them.

And if Congressman Traficant feels himself at liberty to attack unbelievers before the entire House of Representatives, it can hardly be surprising that many state constitutions go even farther and explicitly bar those who do not believe in God from public office. The most extreme example, South Carolina's state constitution, bars unbelievers from public office three separate times, and once explicitly from the office of governor with the phrase: "No person shall be eligible for the office of governor who denies the existence of *the* Supreme Being [my italics; as phrased, this statue explicitly discriminates not only against non-theists, but against non-monotheists, a significantly larger group]."[11]

In 1990, Herb Silverman, a professor of mathematics at the College of Charleston and an atheist, decided to challenge these unconstitutional clauses by running for governor. However, due in a large part to the political influence of those who wished to uphold South Carolina's religious test, the law stayed on the books despite its blatant unconstitutionality and Silverman's direct legal challenge.

But Silverman did not give up. He next decided to try to become a South Carolina notary public, a non-elected office. Normally, of course, *no one anywhere* gets turned down for the position of notary public. But Silverman crossed out the phrase "so help me God" on his notary application, and was duly rejected. In the period 1991-1993, he later learned, South Carolina received 33,472 notary applications, and approved 33,471—all but that of the atheist Herb Silverman, who is probably the only person in the history of South Carolina to be rejected as a notary public.

Only after four years of massive lawing and delay did Silverman finally receive his notary commission, in August of 1997. Despite his efforts, none of the offensive clauses were stricken from South Carolina's constitution, which continues to sneer at unbelievers. Silverman's case demonstrates just how powerful *de facto* discrimination against unbelievers can be. Strictly speaking, South Carolina's statues barring unbelievers from office are illegal, yet they kept Herb Silverman from public office for seven years. The crucial distinction between *de facto* and *de jure* discrimination is further illuminated by the following example. By law (*de jure*), the United States constitution forbids religious tests for public office, but in point of fact (*de facto*), an atheist could never be President. This should keep the distinction clear—and highlight the extent of the problem we face.

The problem extends into every American's purse or wallet, into every classroom in the country, and has since the McCarthy era. On June 14, 1954, the words 'under God' were added to the Pledge of Allegiance of the United States by a unanimous Congress. On July 11, 1954, President Eisenhower penned his signature to Public Law 140, requiring that all U.S. currency bear the motto 'In God We Trust.' (Before this, the phrase had appeared only intermittently on coins.) A year later, on July 30, 1955, Eisenhower signed Public Law 851, replacing our national motto 'E Pluribus Unum' with 'In God We Trust."[1]

These legislative acts verge upon the official establishment of monotheistic religion by our federal government, and are antithetical to Madison's Bill of Rights. Yet very few have protested or even voiced objection to the McCarthyite motto "In God We Trust," which persists on all U.S. currency to this date, despite the fact that it alienates American unbelievers. Similarly, few have noted that in exchanging "E Pluribus Unum" (which translates: "out of many, one") for "In God We Trust" as a national motto, we have intentionally and consciously gone from an inclusive to a divisive slogan—and nation.

Defending Secularism, and Defeating Tyranny of the Majority

What do all of these examples of discrimination signify, on the level of political theory? First and most obviously, they demonstrate that the separation of church and state in America is less than complete. Although some will undoubtedly be pleased to hear this, in truth secularism benefits religious believers just as much as those who do not believe, and its erosion should be viewed with alarm.

The benefits of the separation between church and state are numerous. First, by forever relegating religion to the private sphere, political secularism ensures that government never interferes with the religious practices of its citizens, unless these cause harm to others. Strong secularism thus militates against the persecution of any particular religious group or sect, or any other assault upon uninterrupted religious practice and worship so long as government continues to fulfill its function. It thus appears extremely counterintuitive and self-defeating for religious believers—whose main concern ought to be their own religion, rather than the regulation of the practices and behaviors of others—to object to the separation of church and state.

It is also frequently claimed that secular cultures can be detrimental to religious belief. However, this claim amounts to a thinly veiled apology for attempts by persons of faith to regulate and constrain the free practices of others of different faiths, or of no faith at all. A religious believer who classifies the innocuous behaviors of others as detrimental to his own spirituality has essentially demanded an extension of the rights of the less tolerant—a demand incompatible with equality. We cannot simultaneously defend the liberties of all and yet make concessions to religious believers who claim to be harmed by detrimental "atmospheres" or "presences."

Another benefit of the separation of church and state, again often overlooked, is that of pluralism and diversity. No religion can be deemed so infallible that its practitioners cannot benefit from the realization that many people see things very differently. Encountering diversity cannot fail to be a mind-broadening experience, and the separation of church and state ensures a climate of toleration in which those of different faiths may peacefully coexist, perhaps even inter-

No religion can be deemed so infallible that its practitioners cannot benefit from the realization that many people see things very differently.

mingle.

In its original form, the Constitution ensures the separation of church and state, and in turn these many benefits of secularism. Yet, as this article has shown, reality has diverged from this ideal. The major impulse behind this retreat from Constitutional and Enlightenment principles of equality and toleration seems to be the political phenomena known as tyranny of the majority, one of the greatest dangers faced by democracies.

James Madison most explicitly addresses the danger of tyranny of the majority in Federalist # 10.[2] There he begins by observing that

.... a pure democracy...can admit of no cure for the mischiefs of faction. A common passion or interest will, in almost every case, be felt by a majority of the whole; a communication and concert results from the form of government itself; and there is nothing to check the inducements to sacrifice the weaker party or an obnoxious individual. Hence it is that such democracies have ever been incompatible with personal security or the rights of property.... p. 126.

After concluding that in a pure democracy the rights of individuals simply cannot ever be protected from the decisions of the majority, Madison then goes on to argue that in a democratic republic, this danger can be averted by the construction of various institutional safeguards against tyranny.

In the United States, one such safeguard is the Bill of Rights, and more particularly the First Amendment. These clauses to the Constitution exist in order to ensure that in the United States the many cannot trample on the few; they empower minorities to check majority opinion on any issue involving civil liberties or individual human rights.

However, in the case of discrimination against unbelievers, the First Amendment has been repeatedly circumvented, or simply ignored. The thoughtlessness and intolerance of the American religious majority have brought us to a point at which things must change. In the final analysis, the fundamental point is that we have agreed in this country not to discriminate against anyone based upon belief—any belief, or any conviction. It's time to start living up to this promise. It's time to repair Jefferson's wall.

[1] See "Library of Congress Fires Volley Against Jefferson's 'Wall of Separation,'" Robyn Blumner, *San Francisco Examiner*, September 29, 1998.

[2] It is interesting to contemplate what the difference between a "political manifesto" and a "tool of constitutional interpretation" would amount to, especially for a founding father.

[3] Robert S. Alley, "The Real Jefferson on Religion." *Free Inquiry*, Vol. 18, No. 4.

[4] Blumner.

[5] "Unbelievers" is an umbrella term that encompasses atheists, agnostics, secular humanists, humanists, rationalists, freethinkers, many Unitarians, etc.

[6] A 1997 Gallup Poll on church attendance found that 5 percent of respondents had no religious preference whatsoever. This number takes on great significance when one considers that in the same poll just 3 percent claimed that they embraced Judaism. In other polls, the percentage of American unbelievers has been estimated much higher. For more information, see http://www.gallup.com/POLL ARCHIVES/1997/970329.htm.

[7] Interestingly, the Bill was released on July 17, 1998: precisely one hundred and fifty years after the Declaration of the Rights of Women at Seneca Falls, New York. For a full text of the "Bill of Rights for unbelievers, see http://www.secularhumanism.org/cfa.

[8] It is worth mentioning here that even the Declaration of Independence's "Creator" was envisioned in deistic, rather than theistic or Christian terms. Thus Thomas Jefferson could write to his nephew Peter Carr in 1787, "Question with boldness even the existence of a God, for if there be one, he must more approve the homage of reason than the ....."

[9] In particular, the Preamble of the Constitution affords a perfect place for the inclusion of religious language or purposes, had the framers seen fit to do so even for formal or traditional purposes. Instead, however, the Preamble conspicuously refrains from any religious messages, distinctly asserting that the United States government exists to serve its *citizens*. Not a deity.

[10] For more information on Traficant's speech, see the following URLS: Blasts" http://www.infidels.org/infidels/newsletter/1998/september.html#Congressman Blasts http://www.house.gov/traficant.speech.htm

[11] Quoted in "The Candidate Without a Prayer," Herb Silverman, *Free Inquiry*, Fall, 1992, Vol. 12, No. 4. My account of Silverman's legal battles derives from the same source, and another later article: "The Notorious Notary," Herb Silverman, *Free Inquiry*, Summer 1998, Vol. 18, No. 3.

[12] Information found in *Freedom Under Siege: The Impact of Organized Religion on Your Liberty and Your Pocketbook*, Madalyn Murray O'Hair, 1974....BR516 O335, SML, Stacks, LC Classification.

[13] James Madison, "Federalist No. 10," *The Federalist Papers*, ed. Isaac Kramnick, London, 1987.

Rebuilding Real Leadership and Reviving the G7

Nicole Hinnebusch

Despite the wave of escalating economic problems in East Asia, Russia, and now South America, apocalyptic predictions that the world is rushing headlong toward a systemic crisis are unnecessarily alarmist. True, the once localized finance and banking related debacles have made their effects felt around the world to an extent that even the most seasoned economists could not have forseen. But at the same time, the world economy is far from inexperienced at dealing with this sort of thing: 'systemic crises' have a bad reputation for appearing out of nowhere, giving us a good kick every time our Wall Street-happy brazenness reaches the pitch of excess. The point of this article, however, is not to resurrect the tireless debate of whether financial regulation ought to be more or less stringent, or even whether the benefits of globalization really outweigh the costs, some of which have been observed in the recent unforgiving attacks of speculative investors on national currencies. Instead, this article emphasizes that in analyzing the global political ramifications of the financial fall-outs and their underlying economic woes, the real concern is a question of leadership.

In short, the U.S. leadership has been tied down by a panoply of domestic diversions; Europe has retreated into its Economic and Monetary Union (EMU) shell; and Asia is trapped in a financial quagmire. To the great peril of global economic and political stability, badly needed leadership initiatives have all but been abandoned, and historically, leadership vacuums are an invitation for disaster. In the words of Fred Bergsten of the Institute for International Economics, "an absence of leadership has almost always led to major disruptions in the world economy—because of a failure of the key countries to make needed changes in their own economic policies, because of their failure to respond effectively to systemic crisis, and because of the erosion of institutional arrangements that contributes over time to a deterioration of economic outcomes, and even political relationships, around the globe."[1]

Although they are supposed to represent the world's leaders, the seven richest industrialized democracies - consisting of the U.S., U.K., France, Germany, Italy, Canada, and Japan, effectively all of the Group of Seven (G7) nations[2] - have shrunk from the position of assuming global leadership when they ought to be. What they have done instead is resort to costly, often bungled, and embarrassingly ineffective *ad hoc* policy solutions such as IMF rescue packages when faced with recent full-blown crisis.[3] Dissatisfaction with the recent record of the G7, whose responsibilities were initially conceived to include "identifying potentially undesirable developments at an early stage to prevent damaging repercussions to the world economy"[4] are echoed in the statement by David Mulford, former U.S. Under Secretary and Assistant Secretary of the Treasury under Reagan and Bush: "Why has not a better, more market sensitive credible early warning strategy been

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developed in the three years since the Mexican crisis . . . for addressing similar crisis in important emerging countries in the future—a future that is now?"[5]

The question is then, if G7 leadership has proven delinquent, are there not several alternative organizations to the G7 that could exercise the appropriate leadership role? Those institutions would include the IMF, OECD, U.N., Security Council, and World Bank, each of which have broader representation of membership, and thus appear more accommodating to trends of global multi-polarity than the exclusive G7. There is, however, something clearly lacking in those institutions. Several scholars have noted that the key advantage of the G7 processes over other institutionalized organizations is its power, informality, and flexibility of structure, sustained by a network of working relations. The G7 process is, moreover, the only one that does not occur "at the apex of the pyramid of an established organization," where dialogue is encumbered by bureaucracy, and is restricted to "endorsing or ruling on matters prepared by its own subordinate bodies and secretariat."[6] Recent experience substantiates this, since the G7 is increasingly called upon with greater frequency and consistency than in the past. In those days, the G7 used to restrict itself entirely to considering only matters of economic policy or monetary coordination, but with the convening of emergency G7 sessions to deal with nuclear security considerations in India and Pakistan and the bloodshed in Kosovo, it is clear that the G7 is perceived as instrumental and influential in assuming a position of global leadership at all critical junctures. The G7 ought to continue to take an active role in such political and security affairs by acting as both an effective 'think-tank' and springboard, and agenda-setter for coordinated action.

After all, G7 negotiations involve the top leaders of the seven richest countries, and this high-profile membership can serve as a lever to prod negotiations by "energizing the policy process"[7] and delivering concrete results in a way that the larger, more institutional inertia-prone organizations cannot. The *de facto* legitimacy, flexibility, and personal influence-driven momentum of the G7 processes are difficult to replicate in larger institutions. Thus, the resistance to open G7 membership to other countries despite significant external pressure to do so. For this politically like-minded club of leaders, expansion was never viewed favorably: the magic number was always an uncompromising seven. In fact, surrendering that cap-number to Russia in 1992 came only as a post-Cold War diplomatic concession: an appeasement to Russia for expanding NATO's borders further east.

On the whole, the G7 is thus expected to take- and ought to be taking- more leadership responsibility in world affairs, rather than taking upon itself the inappropriate role of crisis 'firefighting' as it has recently done. The U.S. must take the lead in this effort because, although it is no longer a hegemon, it is the still the most influential voice, and it is also the only country with a truly globalized perspective. As a part of its leadership responsibilities, the G7 must act more receptively to changes in the global balances of power, and a reassessment of its current membership, taking into account the necessity to share real decision making power with more parties. The G7's failure to give sufficient consideration to modernizing its tired membership has caused some observers of G7 exclusivity, such as columnist Tom Friedman of the *New York Times* to rename the G7 the "Geriatric-7."[8]

While it is important to keep membership

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small to preserve the historical informality of the G7 negotiation process among heads of state, it is hard to justify the exclusion of China, India, or Brazil, particularly given the recent inclusion of Russia. Some analysts have proposed a partial solution, to balance the European bias of the G7 by collapsing them into a unified voice, thus creating a G3 composed of the U.S., unified Europe, and Japan, and opening up room for more participants.[9]

Today, the name of the game is expansion, and the coveted status of inclusion ranges from membership in NATO, the WTO, the EMU, and of course, the G7. The rising clamor among emerging democracies or developing nations cannot be ignored, especially in light of the heavy European bias within the G7, which is inconsistent with current balances of power. With regard to China, the U.S. foreign policy strategy to first liberalizing and exploiting the market and then encouraging democratization would be well-served by following the theories of free-market economists like Milton Friedman, who have long proposed that, although not the only condition, economic freedom is at least a necessary precondition for political freedom. Furthermore,
historically, non-inclusion has also given rise to hostile relations between states engendered by resentment and the rise of extremist groups, a phenomenon observed in times of economic hardship.

Opponents of expansion contend that handing out memberships too casually poses problems of its own. Besides watering-down the standards of functional democracy or outright axing the criterion of capitalist economic traditions, filling the group with 'second class citizens' would reduce the clout and strength of the group. Furthermore, for authoritarian governments of industrialized or populous nations, the status of inclusion could buy reactionary leadership all the political legitimacy they hoped to attain in the eyes of the world; endorsed by the G7, China, for example, may feel little incentive or pressure to liberalize any further of its own accord. These arguments, however, do not outweigh the imperatives of political inclusion. It was because the U.S. recognized the implicit importance of diplomatic inclusion that it side-stepped the democratic and market requirements in pressing for Russian membership. There seems to be little reason why the gate must remain indefinitely barred to strategically pivotal nations who stand at the same point of development as Russia.

Beyond the composition of the G7 leadership, a critical factor in determining its potential for success relates to ideology among the leaders. Several economists have recently gone so far as to argue that the G7 ought to resign itself to an economically reactive role, responding only to crisis situations, since the sheer magnitude of private capital flows has made wielding influence over the currency markets unfeasible anyway. Bergsten explains the troublesome development that, as a consequence of the blunting of national autonomy over fiscal and monetary policy caused by large budget deficits, a kind of "consensus for inaction" on *all* policy matters has emerged among G7 leaders. Essentially, a conviction that changes in global economic conditions have made it impossible for them to pursue initiatives that were feasible as recently as a decade ago has caused voluntary immobility within the group. For obvious political reasons, members largely "eschew criticisms of one another in public in a kind of 'non-aggression pact' on the grounds that very little could be accomplished anyway."[10]

This self-imposed limitation by the G7 leadership formally attaches great credence to observed market realities, but in reality, it translates into a convenient "escape clause," or scapegoat to avoid any kind of political cooperation and consensus building on all fronts of policy making. As a justification to pursue regionalist or unilateral policies in an era where global issues are at the forefront of policy consideration, it thwarts political compromise and provides a shield from criticism for political leaders. It is essentially a return to the 'benign neglect,' both politically and economically, of the 1980s that exposed the world economy to serious risks. This kind of neglect violates the simple logic that increased volatility of currency flows and threats of systemic crisis increases, rather than decreases, the need for collective leadership and coherent strategies. Politically, this means unencumbered diplomacy and agenda-setting, and economically, the development and implementation of better early-warning strategies, and delegation of more power to the IMF to act as whistle-blower.

The current retreat from the leadership podium is thus a troublesome development on several levels. First, the growing regionalization of political influence on all continents has accentuated the need for reinvigorated global leadership in times of brewing systemic crisis. The contagion effects have spread across the globe, and show little sign of retreating so far. Second, the G7, as the most appropriate organization for exercising a stabilizing influence because of the

uniqueness of its structure, has voluntarily surrendered its authority, despite recent evidence that it is becoming a more strategically important group. Third, it has taken upon itself to further weaken its clout by stubbornly refusing to share power with emerging powers that are strategically, politically, and economically important. Thus, the U.S. in particular must extricate itself from domestic sideshows and lead the effort to re-vitalize the G7 processes. The reforms must be imminent if predictions of global economic recovery are to remain optimistic. While the markets may be able to forget the far-reaching malaise that systemic crises are capable of delivering, we must not.

[1] Fred Bergsten and R. Henning, "The Decline of the G7." *The International Economy*. July/August 1996. p. 12.
[2] With Russia now included in the party, it has actually become a G8, but in actuality, because of Russia's obvious financial shortcomings, it is still not considered a full member.
[3] The G7 processes are conducted along two tracks of activity: the ongoing Summit processes that culminate in the annual meetings of the heads of government, and the meetings between the national finance ministers and central bank governors who meet quarterly and triannually, respectively, to coordinate monetary and financial policy.
[4] Juergen Stark, *The International Economy*. September/October 1995, p. 53.
[5] David C. Mulford, *The International Economy*. January/February 1998, p. 60.
[6] Robert Putnam and Nicholas Bayne, *Hanging Together – Cooperation and Conflict in the Seven Power Summits*, (London: Heinemann Educational Books), 1987. p. 147
[7] Putnam and Bayne, p. 258.
[8] Mulford, p. 62.
[9] Fred Bergsten, *Global Economic Leadership and the Group of Seven* (Institute for International Economics), 1996.
[10] Bergsten, p. 84-5.

India-US Relations

(Continued from page 14)

from an overly powerful China. No doubt both these developed economies (America and Europe) will soon be competing for India's attention. India's plentiful investment opportunities, its proposed seat on the UN Security Council, and its acknowledged admission to the 'nuclear club' are all channels that the US can exploit to court India. An American policy shift towards India in the near future seems to be inevitable. The question is really at what pace relations will further develop. Prospects for India in the long term, however, look favorable.

[1] Gupta, Shakar. India Redefines its Role. Oxford: Oxford University Press for the International Institute for Strategic Studies, 1995. Pg. 58.
[2] Singh, Malesh Kumar. India's Defense Strategy and Tactics: a geographical analysis. 1st Edition. Delhi: Shree Publishing House: Distributors, Jain Book Depot, 1984. Pg 181.
[3] ibid., pp. 181-
[4] Gupta, Vijay – Editor. India and Non-alignment. Delhi: New Literature, 1983. Pgs. 8-23
[5] ibid., pp. 38-47
[6] Perish, Thomas. The Cold War Encyclopedia. 1st Edition. New York: H. HOH, 1996. Pg 229.
[7] ibid., pp. 239
[8] Young, John. Cold War and Detante 1941-1991. New York: Longman, 1993. Pg. 300.
[9] ibid., pp. 134
[10] ibid., pp 167
[11] ibid., pp 204-5
[12] Gupta, Shakar. Pp. 45
[13] Achuthan, Sahai Nisha. Soviet Arms Transfers in South Asia. Delhi: Lancer Publishing, 1988. Pgs. 41-3.
[14] "Trading Nuclear Weapons" (Time Magazine, May 25, 1998) online, Internet.
[15] Babbage, Ross and Gorden, Sandy – Editors. India's Strategic Future: regional, state, or global power? Houndmills, Basingtstoke, Hampshire: Macmillan, 1992. Pgs. 97-9.
[16] ibid., pp 96
[17] "US – China Relations" (US Department of State June 20, 1997) online, Internet.
[18] "Correct Status and Future Prospects of Sino-US Economies and Trade Relations" (Greater China Kaleidoscope) online, Internet.
[19] "China: the leader in Economic Growth During 1990-1995" (China Statistics) online, Internet.
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[21] Gupta, Shakar. pp. 60.
[22] Gupta, Shakar. pp. 55.
[23] "Rule by Koran Closer to Reality" (South China Morning Post October 10, 1998) online, Internet.
[24] "Secretary-General Welcomes India's Readiness to Conclude Discussions on Signing Comprehensive Nuclear-Test-Ban" (United Nations Press Releases September 24, 1998) online, Internet.
[25] "Pakistan, Acting In Self-Defence, Established Nuclear Deterrence" (United Nations Press Releases September 23, 1998) online, Internet.

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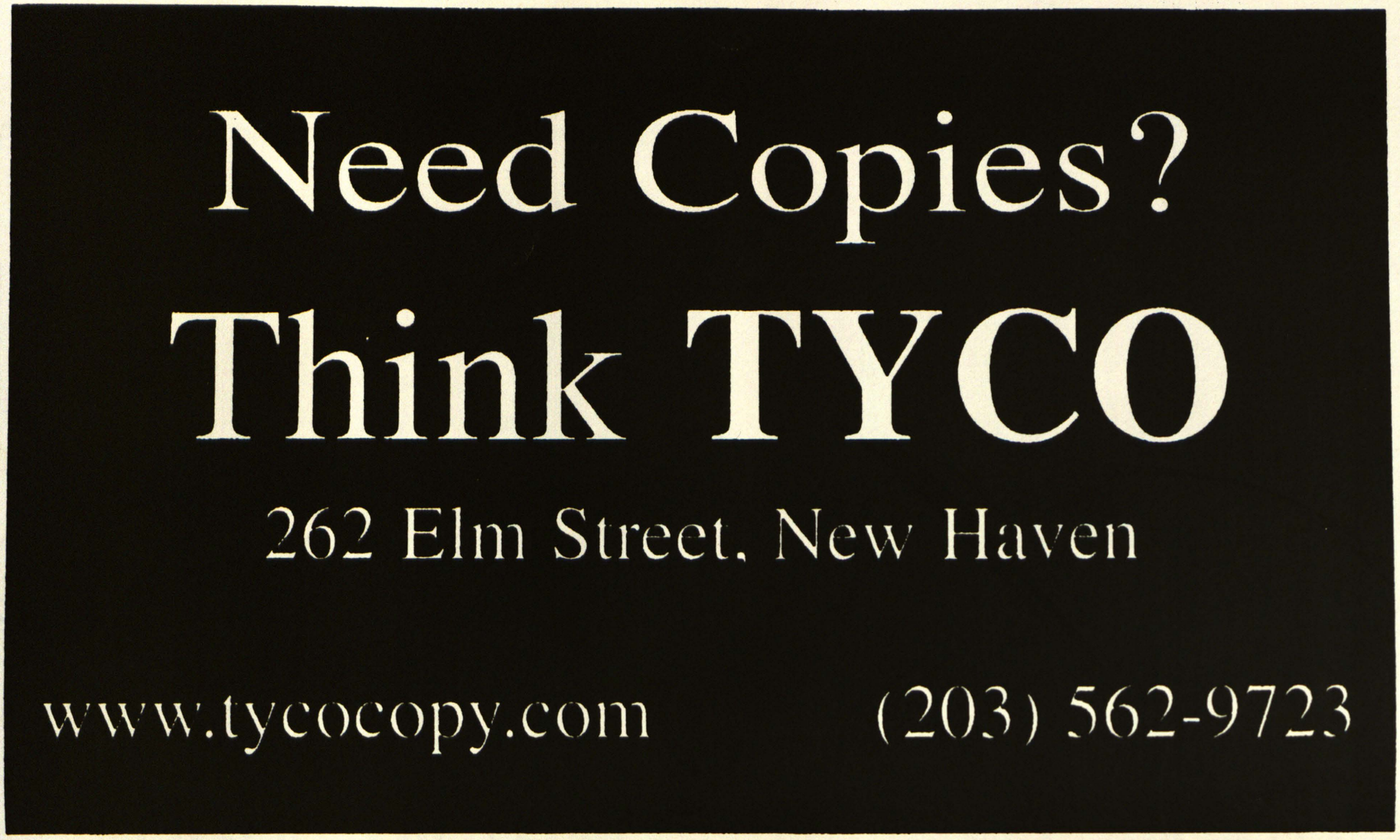
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